
Appeal Decisions

Site visit made on 28 July 2026

by **C Harding BA (Hons) PGCert PGDip MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18 September 2026

Appeal A Ref: 6009866

Land outside Exchange Station, Midland Street, Barnsley S70 1SE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Thomas Johnston against the decision of Barnsley Metropolitan Borough Council.
 - The application Ref is 2025/0219.
 - The development proposed is installation of a communication kiosk with integrated defibrillator and advertisement display.
-

Appeal B Ref: 6009867

Land outside Exchange Station, Midland Street, Barnsley, S70 1SE

- The appeal is made under Regulation 17 of the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) against a refusal to grant express consent.
 - The appeal is made by Thomas Johnston against the decision of Barnsley Metropolitan Borough Council.
 - The application Ref is 2025/0294.
 - The development proposed is installation of a communication kiosk with integrated defibrillator and advertisement display.
-

Decisions

1. Appeal A is dismissed.
2. Appeal B is dismissed.

Preliminary Matters

3. The two appeals are for related proposals at the same site. I have considered each appeal on its individual merits, however, as they raise similar issues, I have combined both decisions into a single decision letter.
4. In relation to Appeal B, the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 (as amended) ('the Regulations') stipulate that control may be exercised only in the interests of amenity and public safety. Therefore, whilst the development plan policies referred to on the decision notice are not determinative, I have taken them into account where relevant.
5. The government published a new National Planning Policy Framework ('the Framework') in August 2026. As this could affect the issue and matters in this case, the Council and appellant were invited to make further comments. My decision reflects the most recent version of the Framework and any responses received in relation to it.

Main Issues

6. The main issue in relation to Appeal A is the effect of the proposal upon the character and appearance of the area.
7. The main issue in relation to Appeal B is the effect of the proposed advertisement upon the amenity of the area.

Reasons

8. The appeal site relates to an area of public realm located close to the junction of Midland Street and Eldon Street, and to the front of Barnsley Interchange ('the Interchange') which is a busy public transport hub.
9. Several items of street furniture are currently located within the public realm including seating and a large bin, not all of which is shown on the provided plans. Although the footway at this location is wide, it is a busy area as it serves two sets of sliding double-doors which form a main entrance to the Interchange. The existing street furniture, located towards the kerb edge allows pedestrian flow across the front of the building and serves to funnel pedestrians towards a drop kerb road crossing point.
10. The existing street furniture results in a degree of visual clutter, however most elements are relatively lightweight and are purposefully located. They do not currently dominate the area in visual terms.
11. Both parties have made reference to an existing telephone kiosk and standalone cash machine located on a pavement close to the appeal site, however at the time of my visit these structures had since been removed. Therefore, neither their potential removal or cumulative impacts are factors to which I have afforded weight in reaching my decision.
12. The proposed kiosk would be located between an existing bench and the front entrance of the Interchange, with plans indicating that it would be located around 45cm from the building itself. Rather than follow the alignment of the pavement, it would be situated such that its widest dimensions would be across the path. Although the provided plan indicates that around 3.7 metres of space would remain to the kerb edge, given that the plans do not show some of the existing street furniture, it is likely that this distance would be considerably reduced.
13. The proposed hub would be a structure of around 2.5 metres in height and over 1 metre in width. Other than a glazed return on one side, it would be solid in construction and would feature a roof canopy. Given its scale and nature, it would appear as a significant structure within the streetscene.
14. Moreover, given the proposed location of the kiosk directly in front of the Interchange entrance and in close proximity to other street furniture, it would lead to a noticeable narrowing of the pavement and would lead to an excessively cluttered cluster of street furniture being evident at this location. The digital illuminated advertisement would only serve to draw the eye further to the structure and would contribute to its overall intrusive appearance, in the midst of what would potentially be a busy area, with pedestrians both entering and exiting the Interchange. These factors would further increase the harmful prominence of the proposed kiosk.

15. Though I have no reason to doubt that the proposed hub and advertisement would be appropriately maintained, this would not mitigate the harm that would result.
16. For these reasons, the development the subject of Appeal A would harm the character and appearance of the area, and the advertisements the subject of Appeal B would harm visual amenity.
17. The proposals would therefore conflict with Barnsley Local Plan Policies BTC3 and D1 which together, and among factors, seek to ensure that developments make a positive contribution to public spaces through their design, siting and use of materials.

Other Matters

18. The appellant has drawn my attention to a number of extracts from a variety of appeal decisions in relation to similar structures elsewhere in the country. However, I note that the cited examples were for proposals in London and are therefore unlikely to be wholly comparable to the circumstances of the appeals which are now before me, which in terms of character and appearance are locationally specific.
19. I have also been made aware of an appeal decision for a similar proposal elsewhere in Barnsley. Although limited details of the proposal itself are before me, it is evident that it related to a proposal on Queen Street and I saw that such a unit had been installed on Queen Street at the time of my visit. Whether or not that unit was associated with the cited appeal, it was clear to me that the context of that site, within a wide, largely pedestrianised shopping areas was materially different to that of this appeal, which relates to a specific area at the entrance to a busy transport interchange. Although I have had regard to this decision, it is not determinative in my decision.
20. The Council has identified that the proposals would be located within the setting of the Regent Street, Church St and Market Hill Conservation Area, as well as the Queen's Hotel which is a Grade II listed building. No harm to these heritage assets is alleged, and I have no reason to disagree. As I am dismissing the appeal, no harm to these assets could arise from my decision in any event.

Planning Balance

21. I have found that the proposed development and advertisements would harm the character and appearance of the area, and the amenity of the area respectively. I have found that both elements would conflict with policies contained within the development plan. In the case of Appeal A, the proposal would conflict with the development plan as a whole.
22. Framework Policy S3 sets out a presumption in favour of sustainable development and, since the appeal sites are located within a settlement, indicates that Framework Policy S4 applies to both proposals.
23. Framework Policy S4 explains that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the Framework's national decision-making policies. Framework Policy S4 also contains a non-exhaustive list of situations where the benefits of approving development are likely to be substantially outweighed by adverse effects. This includes a failure to comply

with one of the national decision-making policies which state that development proposals should be refused in specific circumstances.

24. The proposed communication kiosk would provide additional telecommunications infrastructure. The Framework supports the expansion and upgrading of such infrastructure, and recognises that advanced, high quality and reliable communications are essential to meet changing technological, social, business and security requirements. Being mindful of Framework Policy CO1, I afford substantial weight to the benefits that the communication kiosk would bring in this regard.
25. It is stated that the appellant has partnered with a charity to deliver a tree for every phone kiosk installed. However, it has not been shown that the tree planting scheme is wholly reliant on new kiosks being installed. Although it is suggested that such tree planting could be secured by means of a planning condition, no wording has been put before me, and such a condition would be unlikely to be sufficiently precise or enforceable given it would require a third party to deliver a tree in an unspecified location. I therefore afford this commitment only very limited weight in favour of the kiosk proposal.
26. The provision of a defibrillator would be a public benefit of the proposal. The Council's undisputed evidence indicates that there are 10 existing locations hosting defibrillators within the town centre, including close to the Interchange, which suggests a reasonable degree of existing provision. However, I am mindful that in medical emergencies that the speed with which a defibrillator could be sourced would be an important factor. Nevertheless, it has not been shown that this could not be provided in another, less harmful, location. As a result, I can afford this element of the proposal limited weight as a public benefit.
27. Also, while I accept that the information and communication advantages of the proposal would be potentially particularly beneficial at a public transport hub, it has not been shown that such benefits could not be provided at another, less harmful, location.
28. It is stated that the kiosk advertisement could be made available for public service messaging, however there is no guarantee that this would be the case, so this matter carries little weight in favour of the kiosk. As the content of a proposed advertisement does not fall within the narrow scope of consideration for such proposals, as set out in the Regulations, this is not a factor which weighs in favour of the Appeal B proposal.
29. I have found that the proposals would be harmful to the character and appearance of the area. Framework Policy CO1 (b) states that telecommunications infrastructure should be sited and designed to minimise the visual impact of the proposals, especially in situations where a new site or structure is proposed, so as far practical taking into account its operational requirements. It has not been shown that there are any operational requirements which would prevent the proposal being located in a less harmful location.
30. Furthermore, Framework Policy DP3 sets out that development proposals should respond to their context, so that they integrate with and enhance their surroundings. This policy states that development proposals should be refused if, without clear justification, they conflict with aspects of the policy. The harm that I

have found, in both cases, means that the proposal would not comply with this policy, and the harm I have found is not clearly justified.

31. Therefore, both the proposed communication kiosk in Appeal A and the proposed advertisement in Appeal B would fail to comply with one of the national decision-making policies which states that proposals should be refused in specific circumstances.
32. Taking account of the above, I find that the adverse effects of the proposals within both appeals would substantially outweigh their respective benefits. In such circumstances Framework Policy S3 and the presumption in favour of sustainable development set out within it, indicates that both proposals should be refused.

Conclusions

33. The proposal in Appeal A conflicts with the development plan as a whole. There are no material considerations in this case, including the Framework, which indicate that the appeal should be decided other than in accordance with it. I therefore conclude that Appeal A should be dismissed.
34. The advertisements the subject of Appeal B would harm visual amenity. Having regard to material considerations, including the Framework, I conclude that Appeal B should also be dismissed.

C Harding

INSPECTOR